

STATE OF RHODE ISLAND  
PROVIDENCE, SC

SUPERIOR COURT

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LAURA BENNETT, SHANE WARD,  
PENNY MEDEIROS, ALBERT MUCCI, JR.  
and RAMON RODRIGUEZ,  
on behalf of themselves and all others similarly  
situated,

Plaintiffs,

v.

THOMAS F. AHERN, in his official capacity as  
Administrator of the State of Rhode Island  
Division of Public Utilities and Carriers,  
JAMES E. LANNI, in his official capacity as  
Associate Administrator of the State of Rhode  
Island Division of Public Utilities and Carriers,  
STATE OF RHODE ISLAND DIVISION OF  
PUBLIC UTILITIES AND CARRIERS,  
STATE OF RHODE ISLAND AND  
PROVIDENCE PLANTATIONS by and  
through the DIVISION OF PUBLIC  
UTILITIES AND CARRIERS,  
NARRAGANSETT ELECTRIC COMPANY  
d/b/a NATIONAL GRID

Defendants.

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CIVIL ACTION NO:

**VERIFIED COMPLAINT**

Plaintiffs Laura Bennett, Shane Ward, Penny Medeiros, Albert Mucci, Jr. and Ramon Rodriguez, individually and on behalf of all Plaintiffs, by and through their attorneys respectfully allege as follows:

**PRELIMINARY STATEMENT**

1. Plaintiffs are low-income, seriously ill and/or disabled individuals and members of low-

income households with one or more seriously ill and/or disabled resident all of whom have experienced termination of their residential gas and/or electric utility service provided by Defendant Narragansett Electric Company (d/b/a National Grid) (hereinafter “National Grid”) and regulated by Defendant State of Rhode Island Division of Public Utilities and Carriers (hereinafter “DPU”) during the past three years.

2. Plaintiffs bring this action seeking injunctive and declaratory relief on behalf of themselves and a similarly situated class of individuals pursuant to Rule 23 of the Rhode Island Superior Court Rules of Civil Procedure (“Rule 23”) for violations of 42 U.S.C. § 1983, the Americans with Disabilities Act (“ADA”), Section 504 of the Rehabilitation Act, the Rhode Island Civil Rights Act of 1990, the Rhode Island Civil Rights of People with Disabilities Act, Title 39 of the Rhode Island General Laws and the Rules and Regulations Governing Termination of Residential Electric, Gas and Water Utility Service (“Rules and Regulations”).
3. Defendant National Grid’s termination of Plaintiffs’ gas and/or electric utility service, and Defendant DPU’s approval thereof, were in violation of the Rules and Regulations and Title 39 of the Rhode Island General Laws.
4. Prior to terminating Plaintiffs’ utility services, Defendants DPU and National Grid failed to provide sufficient, timely and unambiguous pre-termination notice and the opportunity for a fair hearing to Plaintiffs, thereby violating Plaintiffs’ 14<sup>th</sup> Amendment due process rights.
5. Defendants’ conduct in terminating the utility service of Plaintiffs for non-payment of arrears with less timely, clear and precise pre-termination notice than that provided to non-disabled consumer households, and denial of fair hearings as afforded to non-disabled

consumer households, was discriminatory and in violation of Federal and State law.

6. As a direct and proximate result of Defendants' acts and omissions, detailed herein, all Plaintiffs have experienced residential gas and/or electric utility termination and remain at risk of experiencing such hardship in the immediate future and continuing thereafter.
7. Plaintiffs are members of a particularly vulnerable population for whom residential gas or electric utility termination constitutes an extreme and dangerous trauma which has previously and may again result in serious adverse health consequences requiring emergency medical treatment and hospitalization.

### **JURISDICTION AND VENUE**

8. This Court has jurisdiction over Plaintiffs' claims pursuant to Rhode Island General Laws §§ 8-2-13; 8-2-14; 9-30-1; 42-35-7; and 42-87-4.
9. Venue is proper in this County pursuant to R.I. General Laws § 8-2-27 because three of the named Plaintiffs reside in Providence County and Defendant National Grid maintains a business office in Providence County.

### **THE PARTIES**

10. Plaintiff Laura Bennett does now reside, and has at all relevant times resided, at Margaret Street, Pawtucket, Rhode Island.
11. Plaintiff Shane Ward does now reside, and has at all relevant times resided, at Bella Avenue, Pawtucket, Rhode Island.
12. Plaintiff Penny Medeiros does now reside, and has at all relevant times resided, at Bulgarmarsh Road, Tiverton, Rhode Island.
13. Plaintiff Albert Mucci, Jr. does now reside, and has at all relevant times resided, at Harris Avenue, Lincoln, Rhode Island.

14. Plaintiff Ramon Rodriguez does now reside, and has at all relevant times resided, at Diamond Hill Road, Woonsocket, Rhode Island.
15. Defendant Thomas F. Ahern is the Administrator of the Rhode Island Division of Public Utilities and Carriers and as such has ultimate responsibility for ensuring the Division of Public Utilities and Carriers' compliance with all applicable laws and regulations. He is sued herein in his official capacity. His principal place of business is 89 Jefferson Boulevard, Warwick, Rhode Island.
16. Defendant James E. Lanni is the Associate Administrator of the Rhode Island Division of Public Utilities and Carriers and has been designated by Defendant Thomas F. Ahern to adjudicate all applications for emergency restoration of electric and gas utility service. Defendant James E. Lanni is also responsible for oversight of the administrative hearing process by which Defendant DPU authorizes termination of residential electric and gas utility service. He is sued herein in his official capacity. His principal place of business is 89 Jefferson Boulevard, Warwick, Rhode Island.
17. Defendant Rhode Island Division of Public Utilities and Carriers ("DPU") is a Rhode Island State administrative agency with its principal place of business at 89 Jefferson Boulevard Warwick, Rhode Island. Defendant DPU is responsible for enforcing compliance of the public utility with the Rules and Regulations as promulgated by the Public Utilities Commission. Defendant DPU is empowered to file suit and be sued pursuant to Title 39 of the Rhode Island General Laws.
18. Defendant State of Rhode Island and Providence Plantations ("State") is sued herein on the basis of official acts and omissions committed by employees and agents of Defendant DPU, an agency created pursuant to R.I.G.L. § 39-1-1 within the executive branch of the state

government.

19. Defendants Thomas F. Ahern, James E. Lanni, Division of Public Utilities and Carriers and State of Rhode Island and Providence Plantations are hereinafter referred to collectively as “DPU”.
20. Defendant Narragansett Electric Company d/b/a National Grid is a public utility as defined by Rhode Island General Laws § 39-1-2(20) and provides both gas and electric utility services.
21. Upon information and belief, Defendant Narragansett Electric Company d/b/a National Grid maintains a corporate office at 280 Melrose Street Providence, Rhode Island.
22. Defendant Narragansett Electric Company d/b/a National Grid has filed a statement with the Rhode Island Secretary of State indicating that its registered agent for service of process is located at 222 Jefferson Boulevard, Suite 200, Warwick, RI.
23. Upon information and belief, Defendant Narragansett Electric Company d/b/a National Grid also maintains a regional corporate office located at 55 Bearfoot Road, Northborough, Massachusetts.
24. Each of the Defendants acts under color of state law in carrying out the conduct described herein.

### **STATUTORY AND REGULATORY SCHEME**

#### **Rhode Island General Laws Title 39 – Public Utilities and Carriers**

25. Pursuant to Rhode Island General Laws § 39-1-1, a copy of which is attached hereto as Exhibit A and incorporated herein, (a) the business of distributing electric energy and natural gas is affected with a public interest and (b) the State has vested in the Public Utilities Commission and the Division of Public Utilities and Carriers exclusive authority

to regulate such business for the purpose of ensuring fair and efficient access to public utility services with “desirable safeguards” for the public.

26. Pursuant to Rhode Island General Laws § 39-1.1-2, a copy of which is attached hereto as Exhibit B and incorporated herein, the Public Utilities Commission is required to promulgate rules and regulations to make relief from termination of utility service available for elderly, disabled and seriously ill persons.
27. Pursuant to Rhode Island General Laws § 39-1.1-1, a copy of which is attached hereto as Exhibit C and incorporated herein, no public utility shall terminate electric, gas or water service to any household wherein any resident is disabled or seriously ill, for failure to pay outstanding arrears, without first complying with all rules and regulations for such terminations issued by the Public Utilities Commission.
28. Pursuant to Rhode Island General Laws Section 39-1-3(b), a copy of which is attached hereto as Exhibit D and incorporated herein, Defendant DPU is statutorily mandated to administer and enforce the Rules and Regulations as promulgated by the Rhode Island Public Utilities Commission.

**Rules and Regulations Governing the Termination of  
Residential Electric, Gas and Water Utility Service**

***Generally Applicable Provisions***

29. The Rules and Regulations, a copy of which is attached hereto as Exhibit E and incorporated herein, set forth the permissible grounds for termination of residential utility service (Part III Section 2), insufficient reasons for termination (Part III Section 3), the public utility’s requirement to make available to consumers residential payment plans for

the purpose of maintaining or restoring service in circumstances where the consumer has accumulated arrears (Part V), review procedures whereby a consumer may request administrative review of a dispute with the public utility including but not limited to whether a consumer is entitled to relief from termination under the Rules and Regulations (Part VI) and the procedures for emergency restoration of previously terminated utility service (Part VII).

30. Part V of the Rules and Regulations sets forth a schedule of maximum residential payment plan terms that may be imposed upon consumers of gas and electric utility services in Rhode Island. Pursuant to the Rules and Regulations, failure of a consumer to adhere to an assigned residential payment plan will result in termination of utility service.
31. Part V Section 4 of the Rules and Regulations, which precedes the aforementioned residential payment plan schedules, states that such plans are “[t]he **maximum allowable** residential payment plan terms that may be required by a gas, water or electric public utility” and that nothing shall prohibit a public utility from offering or accepting less stringent payment terms. (emphasis added)
32. Part III Section IV requires public utilities to provide a specified form of notice and statement of consumer rights prior to termination of electric, gas or water utility service.
33. Part III Section 3 (C)(2) prohibits termination of gas and electric utility service during the period November 1 – April 15 (“winter moratorium period”) for nonpayment of arrears to residential households wherein the named utility customer is receiving unemployment benefits, the household has been designated as elderly or handicapped, the household is a recipient of Low Income Heating Assistance Program (LIHEAP) funds, a resident is seriously ill, or there is a child under the age of two residing in the household and there is

a financial hardship.

34. Part VII(1)(A) provides that requests for emergency restoration of utility service shall be determined by the Administrator or his designee and that such person shall not have been involved in prior review of the subject utility account.

***Specific Protections for the Seriously Ill and Disabled***

35. Utility consumer households in Rhode Island with one or more member suffering from serious illness and/or disability are afforded certain procedural and substantive protections in the Rules and Regulations.
36. ***Serious Illness:*** Part III Section 3(B)(1) provides that a public utility shall not terminate service to a household for nonpayment of arrears upon submission to the utility of a physician's certification that one or more resident of the consumer household is *seriously ill*.
37. Pursuant to this subsection, the public utility is required to (a) acknowledge receipt of such documentation to the consumer, (b) inform the consumer that termination of service will be stayed for twenty-one days from the date of the physician's certification and (c) instruct the consumer that, if the serious illness will last more than twenty-one days, he/she may request hearing be conducted by Defendant DPU to determine "whether the initial exemption from termination shall continue, for how long and under what circumstances."
38. ***"Handicapped" or Disabled:*** Part III Section 3 (E) of the Rules and Regulations states in substance that every public utility is required to devise procedures and methods to identify, before termination of service for non-payment of arrears, accounts affecting households in which any resident is *handicapped*.
39. This regulation further provides that consumers may request protection under the Rules



and Regulations as a handicapped status account upon submission of a signed and notarized document attesting to the identity of the relevant household member and the nature of his/her medical condition.

40. Upon receipt of such documentation, the public utility may not terminate service without prior written approval of Defendant DPU.

***Defendant DPU's Enforcement Duties***

41. Among Defendant DPU's oversight responsibilities with respect to termination of residential utility services are:

- a. a requirement to conduct administrative hearings upon request from an eligible utility consumer to determine whether exemption from termination for households with one or more seriously ill member shall continue and under what circumstances, as well as whether extraordinary or special circumstances warrant less stringent payment plans than otherwise available to consumers in arrears, and
- b. the obligation to conduct investigations upon receipt of applications from Defendant National Grid for special permission to terminate utility service to households with one or more "handicapped" or disabled members. The investigation undertaken in these cases must determine whether the consumer household "received proper notification" and that "the public utility has in good faith attempted to secure payment by reasonable means other than termination and **has not refused to accept payment arrangements that are just and equitable.**" (emphasis added) The Rules and Regulations further provide that Defendant DPU shall "notify the public utility and the residents of the results of the investigation and of any hearing."

## **STATEMENT OF FACTS**

### **Pre-Termination Policies and Procedures Applied to “Seriously Ill” and “Handicapped” Status Consumer Households**

#### ***Defendant National Grid***

42. Defendant National Grid routinely provides inaccurate and misleading information to residential utility consumers who seek protection from termination based on serious illness and/or disability, often times providing multiple contradictory statements to the same consumer household in a single day.
43. Defendant National Grid does not distinguish between “seriously ill” and “handicapped” consumers, instead designating all accounts deemed to have submitted sufficient medical documentation as “medically protected.”
44. Defendant National Grid does not adhere to the two different procedures mandated for seriously ill and handicapped consumers by the Rules and Regulations, altogether failing to provide the special protections afforded to *seriously ill* accounts under Part III Section 3(B)(1) prior to termination of utility service.
45. Defendant National Grid routinely applies to Defendant DPU for permission to terminate utility service to *handicapped* status accounts during the winter moratorium period, notwithstanding the prohibition on utility service terminations at such times.
46. Upon approval of such application for permission to terminate utility service to a *handicapped* status account pursuant to Part III Section 3(E) by Defendant DPU, Defendant National Grid does not provide a precise date of termination to the subject household.
47. Prior to terminating utility service to such handicapped status households, often times months or even years after approval by DPU, Defendant National Grid sends a written

notice to the subject household with a termination date that would apply only to a non-disabled consumer household and a small print statement that termination may occur earlier if the household has been previously approved for termination.

***Defendant DPU***

48. Defendant DPU fails to perform its legally mandated regulatory functions related to Defendant National Grid's termination of utility service to medically vulnerable consumer households.
49. The Rules and Regulations provide for a two-stage administrative hearing process when requested by consumers prior to termination. However, consumers seeking relief under the serious illness or handicapped provisions of the Rules and Regulations are routinely discouraged by Defendant DPU from requesting such hearings and, in certain cases, denied the opportunity to appear before the administrative tribunal.
50. When granted upon request from a consumer, the initial administrative hearing (known as "informal review") functions as little more than a "rubber stamp" for imposition of standardized arrearage repayment plans prescribed elsewhere in the Rules and Regulations. Consumers who may be entitled to protection from termination under the "serious illness", "handicapped" and/or "extraordinary circumstances" provisions of the regulations are rarely, if ever, informed of such rights and afforded an opportunity to present evidence in support thereof.
51. Defendant DPU also uniformly fails to conduct legally sufficient investigations in response to Defendant National Grid's applications for special permission to terminate utility service of households with one or more disabled or "handicapped" member.
52. While Defendant National Grid is prohibited from refusing payment arrangements that are

- “just and equitable” from such consumer households, Defendant DPU does nothing to investigate, review or evaluate payment negotiations between Defendant National Grid and these consumer households prior to granting permission for termination of utility service.
53. Upon receipt of such applications, Defendant DPU merely confirms that disabled consumer households are offered nothing more than the harshest possible arrearage repayment terms, under Part V of the Rules and Regulations, prior to termination of utility service.
  54. Defendant DPU routinely approves such applications in less than 24 hours.
  55. Upon information and belief, a substantial percentage of such applications each year are received and approved during the winter moratorium period.
  56. Upon approval, Defendant DPU sends the subject household a letter stating in substance that Defendant National Grid has applied for permission to terminate the consumer’s utility service, that said application has been granted and that service will be terminated after 10 days unless the consumer makes satisfactory payment arrangements with Defendant National Grid.
  57. Nowhere in said letter or its attachments is there an explanation of the steps that may be taken to request a hearing prior to termination.
  58. The above delineated termination process results in “medically protected” utility consumers being denied any protection under Part III Section 3(B)(1) for *serious illness*.
  59. Said termination process also results in “medically protected” utility consumers receiving a standardized letter from Defendant DPU warning of imminent utility termination, often at a time when such termination is absolutely prohibited.
  60. In such instances when Defendant DPU’s approval for termination letter is issued to handicapped status consumer households during the winter moratorium period, the subject

consumer household does not subsequently receive a pre-termination notice containing an accurate termination date prior to termination which occurs months or years later.

### **INDIVIDUAL PLAINTIFFS**

61. Each of the Plaintiffs experienced one or more forms of Defendants' above described illegal conduct in relation to termination of gas and/or electric utility service.
62. Prior to termination of each Plaintiff's gas and/or electric utility service, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff's medical condition, made inaccurate, misleading and false statements to Plaintiff regarding the rights afforded to medically vulnerable utility consumer households under the Rules and Regulations and the steps necessary to exercise such rights;
  - b. Upon receipt of information relating to Plaintiff's medical condition, failed to inform Plaintiff of his/her right to a twenty-one day stay of termination for serious illness and to seek continued exemption from termination pursuant to Part III Section 3 (B)(1) of the Rules and Regulations;
  - c. Refused to consider or accept any payment arrangement to prevent termination of service other than the "maximum terms" prescribed in Part V of the Rules and Regulations; and
  - d. Failed to provide Plaintiff with timely and accurate notice of when Plaintiff's electric and/or gas utility service would be terminated as is provided to non-disabled status consumers. Plaintiff's utility services were in fact terminated prior to the termination dates contained on notices provided by Defendant National Grid to Plaintiff. Said termination notice contained a small print statement that the

precise termination dates contained therein applied only to non-disabled consumer households and that disabled consumer households, having been pre-approved for termination by Defendant DPU, could be terminated at any time.

63. Prior to termination of each Plaintiff's gas and/or electric utility service, Defendant DPU:
- a. Approved Defendant National Grid's applications for permission to terminate Plaintiff's service, in most instances within 24 hours of receiving said applications;
  - b. Failed to communicate with Plaintiff in any manner whatsoever prior to granting said applications;
  - c. Failed to rely on any medical expertise prior to granting said applications;
  - d. Failed to evaluate materials submitted by Defendant National Grid and/or Plaintiff to determine whether Plaintiff qualified for serious illness protection from termination;
  - e. Failed to review any payment negotiations that had occurred between Plaintiff and Defendant National Grid prior to granting said applications; and
  - f. Failed to provide Plaintiff with a fair hearing prior to termination and/or upon request for emergency restoration of utility service in that:
    - i. Informal reviews conducted prior to termination did not follow coherent standards as serious illness and handicapped protections afforded by the Rules and Regulations were not made available to Plaintiffs;
    - ii. Informal reviews and formal hearings lacked neutral arbiters in that hearing officers and/or their immediate supervisors were involved in prior review of Plaintiff's utility account;
    - iii. Denials of requests for emergency restoration were issued by the same

individual, Associate Administrator James E. Lanni, who had previously reviewed and granted Defendant National Grid's application for permission to terminate service to Plaintiff's handicapped status residence; and

- iv. Decisions from formal hearings conducted to review denials of requests for emergency restoration were not rendered in a timely manner.

#### **LAURA BENNETT**

- 64. Plaintiff Laura Bennett is a 56 year old, disabled woman who is separated from her spouse and living in a low-income household with her adult daughter. Plaintiff Laura Bennett is a consumer of electric and gas utility service provided by Defendant National Grid at her current residence since November 2013.
- 65. Plaintiff Laura Bennett suffers from several serious medical conditions including Leukemia (currently in remission) which previously resulted in the amputation of all her toes, obstructive sleep apnea which requires her usage of an electric powered CPAP device, hypertension, and anxiety. Plaintiff Laura Bennett has been designated a disabled individual by the Social Security Administration and "handicapped" by Defendant DPU pursuant to Part III Section 3(E) of the Rules and Regulations.
- 66. Plaintiff Laura Bennett resides in a low-income household. Her sole sources of income are Supplemental Security Income (SSI), occasional assistance from her adult daughter and Supplemental Nutrition Assistance Program (SNAP) food stamps.
- 67. As a result of the above described circumstances, Plaintiff Laura Bennett has often been unable to satisfy her electric utility payment obligations but has repeatedly attempted to make arrangements with Defendant National Grid in order to address her arrears.
- 68. On June 7, 2014, Plaintiff Laura Bennett submitted to Defendant National Grid a completed

“Affidavit of Medical Condition” and a completed “Medical Form”, forms which had previously been provided to Plaintiff Laura Bennett by Defendant National Grid. The “Affidavit of Medical Condition”, which largely tracks the language of Part III Section 3(E) regarding the physical impairment of one or more household members, was signed by Plaintiff Laura Bennett and notarized as required by the Rules and Regulations.

69. During the period 2014-2015, Defendant National Grid twice terminated electric utility service to Plaintiff Laura Bennett’s residence.
70. Prior to said terminations, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff Laura Bennett’s medical condition, failed to accurately inform Plaintiff Laura Bennett of her right to seek protection from termination based on serious illness pursuant to Part III Section 3(B)(1) and the steps necessary to do so;
  - b. Refused to consider any payment arrangement proposed by Plaintiff Laura Bennett other than the “maximum terms” contained in Part V of the Rules and Regulations, notwithstanding Plaintiff Laura Bennett’s handicapped status and the corresponding prohibition on refusal of “just and equitable” payment arrangements pursuant to Part III Section 3(E); and
  - c. Failed to provide Plaintiff Laura Bennett with clear, timely, unambiguous and individualized pre-termination notice; sending Plaintiff Laura Bennett notices that contained termination dates later than the dates on which her service was actually terminated.
71. Prior to said terminations, Defendant DPU, upon receipt of Defendant National Grid’s applications for permission to terminate utility service to this handicapped status



household, failed to conduct any meaningful investigation and approved said applications in less than 24 hours.

72. Due to termination, Plaintiff Laura Bennett suffered significant breathing difficulties arising from her inability to use a continuous positive airway pressure machine (CPAP), which depends on electricity; loss of use of her refrigerator and microwave obstructing Plaintiff Laura Bennett's ability to prepare affordable meals; hunger due to food deprivation and, because of previous amputation of all toes, loss of electrical light put Plaintiff Laura Bennett at risk for injury and restricted her mobility within her home.

#### **SHANE WARD**

73. Plaintiff Shane Ward is a 55 year old disabled man residing with and caring for his 74 year old mother, Patricia Perry, who suffers from advanced Alzheimer's disease, dementia, seizure disorder, chronic obstructive pulmonary disorder (COPD), hypothyroidism, and dysphagia. Patricia Perry requires use of a 24 hour, electric powered oxygen machine for breathing.
74. Electric and gas utility service is provided to Plaintiff Shane Ward and Mrs. Perry's residence by Defendant National Grid under an account in the name of Patricia Perry, with Plaintiff Shane Ward authorized as a the customer's representative.
75. Plaintiff Shane Ward resides in a low-income household which receives SNAP food stamps. When a sewer pipe unexpectedly burst at their residence in 2014, Plaintiff Shane Ward was suddenly faced with nearly a thousand dollars in additional expenses. Due to these circumstances, Plaintiff Shane Ward has struggled to satisfy the household's payment obligations to Defendant National Grid.
76. Prior to 2013, Plaintiff Shane Ward submitted the same documentation described in

paragraph 68 above and, accordingly, his “handicapped” status household was entitled to protection under Part III Section 3(E) of the Rules and Regulations.

77. During the period 2014-2015, Defendant National Grid terminated both gas and electric utility service to Plaintiff Shane Ward’s residence.
78. Prior to said terminations, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff Shane Ward’s mother’s medical condition, failed to accurately inform Plaintiff Shane Ward of his right to seek protection from termination based on serious illness pursuant to Part III Section 3(B)(1) and the steps necessary to do so;
  - b. Refused to consider any payment arrangement proposed by Plaintiff Shane Ward other than the “maximum terms” contained in Part V of the Rules and Regulations, notwithstanding the household’s handicapped status and the corresponding prohibition on refusal of “just and equitable” payment arrangements pursuant to Part III Section 3(E); and
  - c. Failed to provide Plaintiff Shane Ward with clear, timely, unambiguous and individualized pre-termination notice; sending Plaintiff Shane Ward notices that contained termination dates later than the dates on which his service was actually terminated.
79. Prior to said terminations, Defendant DPU, upon receipt of Defendant National Grid’s applications for permission to terminate utility service to this handicapped status household, failed to conduct any meaningful investigation and approved said applications in less than 24 hours.
80. Upon termination of gas utility service to Plaintiff Shane Ward’s residence, Plaintiff Shane

Ward and his mother Patricia Perry experienced severe hardship. Without gas utility service, Plaintiff Shane Ward's household is deprived of heat, hot water and cooking gas. For Patricia Perry, whose medical conditions include severe and frequent incontinence, the absence of hot water and consequent inability to maintain personal hygiene created significant discomfort, skin breakdown and heightened risk of infection. Additionally, Plaintiff Shane Ward struggled to prepare adequate food for his mother in the absence of cooking gas, a problem of significance given Mrs. Perry's dysphagia which limits her ability to ingest foods. Finally, Mrs. Perry's seizure disorder is triggered by cold temperatures and the lack of heat and running hot water created a substantial burden for Plaintiff Shane Ward who sought to shield her from the outside cold at night as well as cold water while seeking to maintain her personal hygiene.

#### **PENNY MEDEIROS**

81. Plaintiff Penny Medeiros is a 50 year old, severely ill and disabled woman residing alone in a mobile home park. Plaintiff Penny Medeiros is a consumer of electric utility service provided by Defendant National Grid at her residence.
82. Plaintiff Penny Medeiros suffers from chronic obstructive pulmonary disorder (COPD), chronic respiratory failure, and asthma, as well as scar and adhesion disease. Plaintiff Penny Medeiros' respiratory conditions require her to receive constant oxygen supplied through a tube attached to her nose and generated by an electric powered machine on a 24 hour basis. She also requires use of an electric powered nebulizer to effectively receive her asthma medication and an electric powered bi-level positive airway pressure (BIPAP) machine to sleep.
83. Plaintiff Penny Medeiros has been designated as disabled by the Social Security

Administration.

84. Prior to 2013, Plaintiff Penny Medeiros submitted to Defendant National Grid the same documentation described in paragraph 68 above and, accordingly, her “handicapped” status household was entitled to protection under Part III Section 3(E) of the Rules and Regulations.
85. Plaintiff Penny Medeiros resides in an extremely low-income household. She survives on Social Security Disability Insurance, SSI payments, as well as SNAP benefits and occasional assistance from family members and charitable organizations.
86. On or about July 18, 2013, Plaintiff Penny Medeiros submitted to Defendant National Grid a letter from her treating physician, Andrea J. Bond, M.D., explaining that Plaintiff Penny Medeiros “depends on electricity for breathing treatments and home O<sub>2</sub>.” [sic] The letter further states that “[p]enny needs to have electric services for every day [sic] living and survival.”
87. Upon information and belief, Defendant National Grid never responded to said letter as required by Part III Section 3(B)(1) of the Rules and Regulations.
88. On August 26, 2014, Defendant National Grid terminated electric utility service to Plaintiff Penny Medeiros’ residence, despite the fact that Plaintiff Penny Medeiros specifically informed Defendant National Grid that she was dependent upon an electric powered oxygen machine for her survival and that termination of electric utility service to her residence would threaten her life.
89. Upon termination of her electric utility service, Plaintiff Penny Medeiros immediately began to use an emergency supply of battery powered oxygen at her residence. Plaintiff Penny Medeiros and her home health aid frantically called Defendant National Grid but

were told that electric utility service could not be restored without the required down payment pursuant to the “maximum terms” of the Rules and Regulations.

90. As Plaintiff Penny Medeiros quickly depleted the emergency supply of oxygen in her home, she also called the office of United States Senator Jack Reed and the George Wiley Center, seeking advocacy assistance. Plaintiff and her home health aid prepared to call an ambulance. Only after the urging of community advocates, Defendant DPU agreed to order immediate restoration of electric utility service without a down payment.
91. As a result of this episode and the necessity of using her emergency oxygen supply, Plaintiff Penny Medeiros suffered an infection and other adverse health consequences.
92. Prior to said terminations, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff Penny Medeiros’ medical condition—including a physician’s letter certifying Plaintiff Penny Medeiros’ illness and dependence on an electric powered oxygen machine for survival, failed to accurately inform Plaintiff Penny Medeiros of her right to seek protection from termination based on serious illness pursuant to Part III Section 3(B)(1) and the steps necessary to do so;
  - b. Refused to consider any payment arrangement proposed by Plaintiff Penny Medeiros other than the “maximum terms” contained in Part V of the Rules and Regulations, notwithstanding the household’s handicapped status and the corresponding prohibition on refusal of “just and equitable” payment arrangements pursuant to Part III Section 3(E); and
  - c. Failed to provide Plaintiff Penny Medeiros with clear, timely, unambiguous and individualized pre-termination notice; sending Plaintiff Penny Medeiros notices

that contained termination dates later than the dates on which her service was actually terminated.

93. Prior to said termination, Defendant DPU, upon receipt of Defendant National Grid's applications for permission to terminate utility service to this handicapped status household, failed to conduct any meaningful investigation and approved said application.
94. On or about April 2015, Defendant National Grid again began sending written notices to Plaintiff Penny Medeiros informing her of her payment arrearage and warning of electric utility termination.
95. Through her attorneys, Plaintiff Penny Medeiros then requested that Defendant DPU conduct an informal review and formal hearing pursuant to the Rules and Regulations. Plaintiff Penny Medeiros submitted medical documentation, including a physician's certification of serious illness during said hearings and requested relief from termination based upon the "serious illness" provision of the Rules and Regulations.
96. In a decision dated September 21, 2015, Defendant DPU directed Defendant National Grid to terminate Plaintiff Penny Medeiros' electric utility service on October 6, 2015 if Plaintiff Penny Medeiros has not then entered into the Part V, maximum terms payment plan which requires a down payment of \$671.95.

**ALBERT MUCCI, JR.**

97. Plaintiff Albert Mucci, Jr. is a 63 year old disabled veteran of the United States Marines Corps. Since 1983, he has resided at his current residence with his wife and maintained residential electric utility service in his own name.
98. Plaintiff Albert Mucci, Jr. suffers from four herniated back discs, sleep apnea requiring use of an electric powered CPAP machine, Type II diabetes, severe arthritis, hypertension, atrial

fibrillation, and depression. Plaintiff Albert Mucci, Jr.'s wife suffers from clinical depression.

99. Plaintiff Albert Mucci, Jr. and his wife are a low-income household, surviving on Plaintiff Albert Mucci Jr.'s Social Security Disability Insurance payments and SNAP benefits.
100. Due to illness and loss of employment, Plaintiff Albert Mucci, Jr. and his wife began to fall behind on their electric utility payments.
101. Prior to 2013, Plaintiff Albert Mucci, Jr. submitted to Defendant National Grid the same documentation described in paragraph 68 above and, accordingly, his "handicapped" status household was entitled to protection under Part III Section 3(E) of the Rules and Regulations.
102. During the period May-July 2015, Defendant National Grid twice terminated electric utility service to Plaintiff Albert Mucci Jr.'s residence.
103. Prior to said terminations, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff Albert Mucci, Jr.'s medical condition, failed to accurately inform Plaintiff Albert Mucci, Jr. of his right to seek protection from termination based on serious illness pursuant to Part III Section 3(B)(1) and the steps necessary to do so;
  - b. Refused to consider any payment arrangement proposed by Plaintiff Albert Mucci, Jr. other than the "maximum terms" contained in Part V of the Rules and Regulations, notwithstanding the household's handicapped status and the corresponding prohibition on refusal of "just and equitable" payment arrangements pursuant to Part III Section 3(E); and
  - c. Failed to provide Plaintiff Albert Mucci, Jr. with clear, timely, unambiguous and

individualized pre-termination notice; sending Plaintiff Albert Mucci, Jr. notices that contained termination dates later than the dates on which his service was actually terminated.

104. Prior to said terminations, Defendant DPU, upon receipt of Defendant National Grid's applications for permission to terminate utility service to this handicapped status household, failed to conduct any meaningful investigation and approved said applications.
105. During the nearly two months that Plaintiff Albert Mucci, Jr. and his wife were deprived of electric utility service, they experienced substantial hardship including being forced to seek shelter and loss of refrigerated food.

#### **RAMON RODRIGUEZ**

106. Plaintiff Ramon Rodriguez is a 72 year old disabled man suffering from end stage lung disease as well as diabetes and cardiac impairment resulting from a heart attack in February 2015.
107. Plaintiff Ramon Rodriguez is dependent on a 24 hour electric powered oxygen machine for his survival.
108. Plaintiff Ramon Rodriguez' sole sources of income are Social Security retirement benefits and SSI payments. Plaintiff Ramon Rodriguez also receives SNAP benefits.
109. As a result of his low income and medical issues, Plaintiff Ramon Rodriguez has struggled to satisfy his payment obligations to Defendant National Grid and has experienced termination of his electric utility service on at least six separate occasions in the past decade.
110. Prior to 2013, Plaintiff Ramon Rodriguez submitted to Defendant National Grid the same documentation described in paragraph 68 above and, accordingly, his "handicapped" status



household was entitled to protection under Part III Section 3(E) of the Rules and Regulations.

111. On or about October 2014, Plaintiff Ramon Rodriguez submitted to Defendant National Grid a signed statement from a medical doctor indicating Plaintiff Ramon Rodriguez' illness and that that temporary loss of electric utility service to Plaintiff Ramon Rodriguez' residence could be life threatening.
112. Upon information and belief, Defendant National Grid never responded to said physician's certification as required by Part III Section 3(B)(1) of the Rules and Regulations.
113. On July 27, 2015, Defendant National Grid terminated electric utility service to Plaintiff Ramon Rodriguez' residence.
114. Prior to said terminations, Defendant National Grid:
  - a. Upon receipt of information relating to Plaintiff Ramon Rodriguez' medical condition—including the above referenced physician's certification, failed to accurately inform Plaintiff Ramon Rodriguez of his right to seek protection from termination based on serious illness pursuant to Part III Section 3(B)(1) and the steps necessary to do so;
  - b. Refused to consider any payment arrangement proposed by Plaintiff Ramon Rodriguez other than the "maximum terms" contained in Part V of the Rules and Regulations, notwithstanding the household's handicapped status and the corresponding prohibition on refusal of "just and equitable" payment arrangements pursuant to Part III Section 3(E); and
  - c. Failed to provide Plaintiff Ramon Rodriguez with clear, timely, unambiguous and individualized pre-termination notice; sending Plaintiff Ramon Rodriguez notices

that contained termination dates later than the dates on which his service was actually terminated.

115. Prior to said termination, Defendant DPU, upon receipt of Defendant National Grid's applications for permission to terminate utility service to this handicapped status household, failed to conduct any meaningful investigation and approved said application in less than 24 hours.
116. Upon termination of electric utility service to his residence, Plaintiff Ramon Rodriguez endeavored to maintain access to his electric powered oxygen machine by plugging a mobile unit into his motor vehicle battery.
117. Plaintiff Ramon Rodriguez also sought to utilize electrical outlets at a nearby laundromat and McDonald's restaurant. As he was unable to consistently obtain oxygen, Plaintiff Ramon Rodriguez' health deteriorated, he was unable to breath and was forced to seek emergency medical treatment at Landmark Medical Center in Woonsocket.
118. Plaintiff Ramon Rodriguez was then hospitalized for approximately two weeks.
119. Upon discharge from the hospital, Plaintiff Ramon Rodriguez sought legal assistance from the Rhode Island Center for Justice. Through his attorneys, Plaintiff Ramon Rodriguez requested that Defendant DPU order emergency restoration of his electric utility service.
120. Plaintiff Ramon Rodriguez' request for emergency restoration was denied by Defendant DPU in a decision issued by the same individual, Defendant James E. Lanni, that previously reviewed and granted Defendant National Grid's application for permission to terminate utility service to this handicapped status residence—a violation of Part VII of the Rules and Regulations which specifies that the Administrator's designee for such emergency matters shall not have been involved in prior review of the subject account.

121. On August 24, 2015, upon the request of Plaintiff Ramon Rodriguez' attorneys, a formal hearing was conducted by Defendant DPU to review said denial. In a decision dated September 11, 2015, Defendant DPU upheld its previous denial of Plaintiff Ramon Rodriguez' emergency restoration request and prohibited Defendant National Grid from restoring Plaintiff Ramon Rodriguez' electric utility service until Plaintiff Ramon Rodriguez makes a down payment of \$1,190.91 in accordance with the maximum terms of Part V of the Rules and Regulations.

### **CLASS ALLEGATIONS**

122. Pursuant to Rhode Island Superior Court Rule of Civil Practice 23, Plaintiffs bring this action on behalf of themselves and a statewide class ("Statewide Class") of similarly situated persons defined as: all consumers of electric and gas utility services provided by Defendant National Grid in Rhode Island on or after September 1, 2012 who have submitted to Defendant National Grid documentation required for the consumer's residence to be designated as "medically protected", "seriously ill" and/or "handicapped" pursuant to the Rules and Regulations.
123. The Statewide Class seeks certification of claims for declaratory and injunctive relief.
124. Excluded from the Statewide Class are the officers, directors, and employees of Defendants, their legal representatives, heirs, successors, and assigns of Defendants, and all judges who may ever adjudicate this case.
125. Plaintiffs reserve the right to modify the Statewide Class definition and the class period based on the results of discovery.
126. **Numerosity:** The Statewide Class (collectively referred to below as the "Class") are so numerous that the individual joinder of all members, in this or any action is impracticable.

The exact number or identification of Class members is presently unknown to Plaintiffs, but it is believed that the Class numbers over four thousand consumers.

127. **Commonality:** There is a well-defined community of interest in the questions of law and fact involved affecting the members of the Class. These common legal and factual questions include:
- a. Whether Defendants have violated Federal and State law through Defendants' policies and routine practices relating to termination and threatened termination of electric and gas utilities service to seriously ill and disabled consumer households; and
  - b. Whether Plaintiffs are entitled to injunctive and declaratory relief.
128. **Typicality:** The issues and evidence that are to be presented in this case are typical among the named Plaintiffs and Defendants because each Plaintiff's claim arises from the same course of events and the theory of liability against Defendants is the same among all Plaintiffs similarly affected.
129. **Adequate Representation:** Plaintiffs are adequate representatives of the Class because their interests do not conflict with the interests of the members of the Class they seek to represent.
130. All Class Counsel are qualified and experienced to handle this type of litigation and can represent the Plaintiffs and Plaintiff Class Members fairly and adequately.
131. Class certification is appropriate under Rule 23(b)(1) and/or 23(b)(2) because the prosecution of separate actions by or against individual members of the Class would create a risk of inconsistent or varying adjudications with respect to individual members of the Class which would establish incompatible standards of conduct for the party opposing the Class.

132. Class certification is appropriate under Rule 23(b)(1) and/or 23(b)(2) because adjudications with respect to individual members of the Class which would as a practical matter be dispositive of the interests of the other members not parties to the adjudications or substantially impair or impede their ability to protect their interest.

### **FIRST CAUSE OF ACTION**

#### ***Against All Defendants***

#### **Violation of Due Process**

133. The allegations contained in every paragraph above are hereby incorporated as though fully reiterated and set forth herein.
134. The 14<sup>th</sup> Amendment of the U.S. Constitution and 42 U.S.C. § 1983 create a cause of action on behalf of “any citizen of the United States or other person within the jurisdiction thereof” who has been deprived of “any rights, privileges or immunities by the Constitution and laws” against any person acting “under color of any statute, ordinance, regulation or usage . . . .”
135. Defendants are “persons” acting “under color” of State law within the meaning of 42 U.S.C. § 1983.
136. The individual Plaintiffs have a property interest in maintaining gas and/or electric utility service within the meaning of the Due Process Clause of the 14<sup>th</sup> Amendment of the United States Constitution.
137. Plaintiffs must, therefore, be accorded due process prior to deprivation of their protected property interest in continued gas and/or electric utility consumption. Such due process includes, but is not limited to:
- a. Clear, timely, unambiguous, and individualized notice of termination and the steps

and procedures to be followed to maintain gas and/or electric utility service prior to termination of such utility service;

- b. A fair and impartial hearing, conducted in accordance with coherent standards, prior to termination of their gas and/or electric utility service; and
- c. Timely resolution of administrative proceedings to determine a utility consumer's right to access gas and/or electric utility service.

138. Defendants' failure to (a) give Plaintiffs clear, timely, unambiguous, and individualized notice of termination; (b) give Plaintiffs consistently accurate explanations of the steps and procedures to be followed to maintain their gas and/or electric utility service; (c) provide fair hearings with neutral arbiters and coherent standards prior to termination; and (d) render timely decisions upon requests for emergency restoration of utility services deprived Plaintiffs of due process of law.

## **SECOND CAUSE OF ACTION**

### ***Against All Defendants***

#### **Violation of the Americans with Disabilities Act**

139. The Americans with Disabilities Act ("ADA") 42 U.S.C. 12101 et seq., prohibits a public entity from denying benefits to individuals because of their disability, or otherwise discriminating against disabled individuals.
140. The ADA defines public entities as "any State or local government" and "any department, agency, . . . or other instrumentality of a State or local government." 42 U.S.C. § 12131(1).
141. A disability under the ADA is defined broadly to include "a physical or mental impairment that substantially limits one or more major life activities" including, inter alia, caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing,

lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working. Id. at § § 12102(1),(2),(4).

142. Plaintiffs are all disabled within the meaning of the Americans with Disabilities Act (“ADA”), 42 U.S.C. 12101 et seq.
143. Defendants are public entities within the meaning of the ADA and/or have acted in concert with public entities, within the meaning of the ADA, in carrying out the above described acts and omissions.
144. Defendants’ routine practice of providing inaccurate termination information to “handicapped” or disabled status consumer households, in addition to Defendants’ termination of gas and/or electric utility service to “handicapped” or disabled status consumer households prior to the dates contained on Defendant National Grid’s termination notices—a practice which is applied only to “handicapped” status consumer households, constitutes unlawful discrimination under the ADA.
145. Defendants’ routine practice of denying disabled utility consumers the benefits and protections specifically provided for seriously ill and “handicapped” consumer households in the Rules and Regulations, as detailed above, is a violation of § 35.130 of the ADA.

### **THIRD CAUSE OF ACTION**

#### ***Against All Defendants***

#### **Section 504 of the Rehabilitation Act**

146. Section 504 of the 29 U.S.C. § 701 (“the Rehabilitation Act”) states in relevant part that “[n]o otherwise qualified individual with a disability in the United States, as defined in § 705(20) of this title, shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any

program or activity receiving Federal financial assistance . . . .”

147. Plaintiffs are disabled within the meaning of § 705(20) of the Rehabilitation Act.
148. Upon information and belief, federal funding is received by Defendants National Grid and DPU.
149. Upon information and belief, Defendant National Grid’s receipt of federal funds includes but is not limited to LIHEAP funding.
150. Defendants’ routine practice of providing inaccurate termination information to “handicapped” or disabled status consumer households, in addition to Defendants’ termination of gas and/or electric utility service to “handicapped” or disabled status consumer households prior to the dates contained on Defendant National Grid’s termination notices—a practice which is applied only to “handicapped” status consumer households, constitutes unlawful discrimination under the Section 504 of the Rehabilitation Act.
151. Defendants’ routine practice of denying disabled utility consumers the benefits and protections specifically provided for seriously ill and “handicapped” consumer households in the Rules and Regulations, as detailed above, is a violation of Section 504 of the Rehabilitation Act.

#### **FOURTH CAUSE OF ACTION**

##### ***Against All Defendants***

#### **Rhode Island Civil Rights Act of 1990**

152. Rhode Island General Laws § 42-112-1 states in substance that all persons regardless of disability or other such class categorization are entitled to the full and equal benefit of all laws and proceedings for the security of persons and property.



153. Plaintiffs are disabled within the meaning of the Rhode Island Civil Rights Act of 1990.
154. Defendants' conduct as described above, in terminating Plaintiffs' utility service in a manner which afforded Plaintiffs less accurate information, less timely and sufficient notice, and less access to fair pre-termination hearings than that afforded to non-disabled consumers, deprived Plaintiffs of the full and equal benefit of laws and proceedings for the security of their persons and property in violation of RI General Laws § 42-112-1.

### **FIFTH CAUSE OF ACTION**

#### ***Against All Defendants***

#### **Rhode Island Civil Rights of People with Disabilities Act**

155. Rhode Island General Laws § 42-87-2 states in substance that no otherwise qualified person with a disability, solely by reason of his/her disability shall be subject to discrimination by any entity doing business in the state or denied the benefits of any program, activity or service of any entity regulated by the state or under any program or activity conducted by the state or its agents.
156. Plaintiffs are disabled within the meaning of Rhode Island General Laws § 42-87 et seq.
157. Defendant National Grid is an entity doing business in the State of Rhode Island and regulated by the State of Rhode Island within the meaning of Rhode Island General Laws § 42-87.
158. Defendant DPU's regulation of the termination residential utility service is an activity conducted by the State within the meaning of Rhode Island General Laws § 42-87.
159. Defendants conduct, as described above, in terminating Plaintiffs' utility service with less accurate information, less timely and sufficient notice, and less access to fair pre-termination hearings than that afforded to non-disabled consumers constitutes

discrimination in violation of Rhode Island General Laws § 42-87-2.

160. Defendants conduct, as described above, in failing to adhere to the procedural and substantive requirements of the Rules and Regulations pertaining to termination of utility service to seriously ill and handicap status consumer households, denied Plaintiffs the benefits of activities and services of an entity regulated by the State and of activities conducted by the State and its agents in violation of Rhode Island General Laws § 42-87-2.

### **SIXTH CAUSE OF ACTION**

#### ***Against Defendant National Grid***

#### **Violation of Rhode Island General Laws Section 39-1.1-1**

161. Plaintiffs are all disabled and/or seriously ill within the meaning of RI General Laws § 39-1.1-1.
162. Defendant National Grid is a public utility within the meaning of RI General Laws § 39-1.1-1.
163. Defendant National Grid was aware of Plaintiffs' serious illnesses or disabilities and/or the serious illness or disability of one or more members of Plaintiffs' residences at the time that Defendant National Grid terminated gas and/or electric utility service to Plaintiffs' residences.
164. Defendant National Grid's conduct, as described above, in terminating Plaintiffs' electric and/or gas utility service was in violation of Part III Section 3(B)(1) and Part III Section III (E) of the Rules and Regulations and thus constitutes a violation of RI General Laws § 39-1.1-1.

### **SEVENTH CAUSE OF ACTION**

*Against Defendant DPU*

**Violation of Rhode Island General Laws Section 39-1-3**

165. Rhode Island General Law § 39-1-3 provides that the Administrator of the Division of Public Utilities and Carriers shall exercise and enforce all laws relating to public utilities and carriers and all regulations and orders of the commission governing the conduct and charges of public utilities.
166. Rhode Island General Law § 39-1.1-1 is a law relating to public utilities and carriers within the meaning of § 39-1-3.
167. The Rules and Regulations are regulations governing the conduct and charges of public utilities within the meaning of § 39-1-3.
168. Defendant DPU's conduct as described above, in permitting and facilitating Defendant National Grid's termination of gas and/or electric utility service to Plaintiffs' residences and failing to comply with the pre-termination requirements set forth in the Rules and Regulations, was in violation of Rhode Island General Laws § 39-1-3.

**PRAYER FOR RELIEF**

**WHEREFORE**, the Plaintiffs respectfully request that this Court enter a Judgment:

1. Declaring the acts and practices complained of herein to be violations of the 14<sup>th</sup> Amendment to the U.S. Constitution, the Americans with Disabilities Act, Section 504 of the Rehabilitation Act, the Rhode Island Civil Rights Act of 1990, the Rhode Island Civil Rights of People with Disabilities Act, Rhode Island General Laws § § 39-1.1-1 and 39-1-3;
2. Issuing a permanent injunction against Defendants:
  - a. Prohibiting Defendants from terminating or threatening to terminate electric

and/or gas utility service for nonpayment of arrears to Plaintiffs' and the Class' residences unless and until Defendants establish and this Court approves procedures for termination in compliance with the 14<sup>th</sup> Amendment of the U.S. Constitution, Rhode Island General Laws Title 39, the Rules and Regulations Governing Termination of Residential Electric, Gas and Water Utility Service, the Americans with Disabilities Act, Section 504 of the Rehabilitation Act, the Rhode Island Civil Rights Act of 1990 and the Rhode Island Civil Rights of Persons with Disabilities Act.

3. Awarding Plaintiffs reasonable fees and costs; and
4. Granting such other relief as this Court deems necessary and proper.

RESPECTFULLY SUBMITTED  
THE PLAINTIFFS, by

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